

50& Gallery — Artist Submission Conditions

(Default terms for inclusion of artwork on the 50& Gallery web portal. No names or signatures required.)

These conditions apply when an artist supplies images/files for display and potential sale via the 50& Gallery website (“the Portal”). By submitting work for inclusion, the artist confirms acceptance of these conditions.

1. Definitions

- 1.1 “Artist” means the person submitting work for inclusion.
- 1.2 “Work” means the painting, photograph, or digital artwork being listed.
- 1.3 “Image/File” means any photograph, scan, or digital file provided for listing and/or fulfilment.
- 1.4 “Sale” means a completed transaction for a Work through the Portal.

2. What is submitted (and what is not)

- 2.1 Paintings / physical originals: The Artist submits photographs of the Work only. The original physical artwork remains in the Artist’s possession until a Sale is confirmed.
- 2.2 Digital art: The Artist supplies a sufficiently large, print-ready file suitable for the intended final print size (typically 300 DPI at print size or equivalent).

3. Handling and production costs (digital art)

- 3.1 Digital art may incur handling and production costs including printing, materials, packing, and dispatch.
- 3.2 Any such costs will be communicated before fulfilment and will be either:
 - 3.2.1 charged to the buyer at checkout; or
 - 3.2.2 deducted from the Artist’s proceeds;depending on the Portal’s configuration for that listing.

4. Image use, limits, and retention

- 4.1 Images/Files are used only to:
 - 4.1.1 display Works on the Portal; and
 - 4.1.2 fulfil a Sale.
- 4.2 Images/Files will not be used outside the Portal (e.g., social media, third-party advertising, or other websites) without the Artist’s explicit permission.
- 4.3 Images/Files are not retained after fulfilment except where reasonably required for transaction records (e.g., order confirmation, invoice, and fulfilment logs).
- 4.4 The Artist acknowledges that web display may involve normal technical processes such as resizing, compression, or thumbnail creation.

5. Rights, permissions, and originality

- 5.1 The Artist confirms they own the Work and/or have full permission to license its display and sale.
- 5.2 The Artist confirms the Work does not infringe third-party rights (copyright, trademark, privacy, or publicity).

5.3 If the Work includes recognisable people, private property, or third-party materials requiring consent, the Artist confirms such consent has been obtained.

6. Listing details and accuracy

6.1 The Artist must provide accurate information: title, medium, size/dimensions, year (if known), edition details (if any), and any relevant condition notes.

6.2 The Portal may edit wording for clarity and formatting without changing meaning.

6.3 The Artist must notify the Portal promptly if a listed Work becomes unavailable.

7. Sales, commission, and payouts

7.1 There are no charges unless a Sale occurs.

7.2 A commission of [25%] is deducted from the sale price of the Work. The Artist receives the remainder, subject to any agreed costs (e.g., printing, packing, shipping) and payment processing fees where applicable.

7.3 Payout timing: within [N] business days after the Sale is confirmed and any return/refund window (if used) has passed.

8. Fulfilment and dispatch

8.1 Physical originals: Unless otherwise agreed, the Artist packs and dispatches the original promptly after a Sale is confirmed, using tracked delivery and appropriate protective packaging.

8.2 Digital prints: Where production is arranged, printing and dispatch will follow the Portal's production workflow.

8.3 The Artist is responsible for providing accurate dispatch information and cooperating to resolve delivery issues.

9. Returns, damage, and disputes

9.1 If a buyer reports damage or non-delivery, the Portal may request photos and carrier evidence. The Artist agrees to cooperate to resolve the issue.

9.2 Where a refund is required under applicable consumer law or the Portal's stated policy, the Portal and Artist will agree the remedy (refund, replacement, or reprint) and any cost allocation.

10. Removal and termination

10.1 The Artist may request removal of a listing at any time; removal will be actioned within a reasonable period.

10.2 The Portal may remove listings that breach these conditions or where the Work is unavailable, misleading, or subject to rights concerns.

11. Privacy and contact details

11.1 The Artist's personal contact details are used only for administering listings and fulfilment communications.

11.2 Buyer details are used only for fulfilment and customer service and are not shared beyond what is required to dispatch orders.

12. General

12.1 These conditions may be updated from time to time; the latest version applies to new submissions.

12.2 Governing law and jurisdiction: [insert jurisdiction].